

Further, as Defendant argues, Plaintiff's claim for perjury is barred by the litigation privilege codified at Civil Code section 47. Civil Code section 47(b) sets for the so-called 'litigation privilege,' which broadly protects communications made during judicial proceedings. It defines a "privileged publication" to include one made in any "judicial proceeding." That section "has been given broad application," and is now "held applicable to any communication, whether or not it amounts to a publication [citations] and all torts except malicious prosecution." (*Silberg v. Anderson* (1990) 50 Cal.3d 205, 211-12.) It applies to "any publication required or permitted by law in the course of a judicial proceeding to achieve the objects of the litigation, even though the publication is made outside the courtroom and no function of the court or its officers is involved." (*Id.* at p. 212.)

The publication "need not be pertinent, relevant, or material in a technical sense to any issue in the action; it need only have some connection or relation to the proceedings." (*Portman v. George McDonald Law Corp.* (1979) 99 Cal.App.3d 988, 991.) The privilege applies even where the testimony "is allegedly perjured and malicious." (*Id.* at 990.) "The resulting lack of any really effective civil remedy against perjurers is simply part of the price that is paid for witnesses who are free from intimidation by the possibility of civil liability for what they say." (*Ibid.*)

"The usual formulation is that the privilege applies to any communication (1) made in judicial or quasi-judicial proceedings; (2) by litigants or other participants authorized by law; (3) to achieve the objects of the litigation; and (4) that have some connection or logical relation to the action." (*Silberg, supra*, 50 Cal.3d at 212.) Here, Defendant's alleged testimony at the restraining order hearing relating to how many members CMOUTS LLC has, who owns the Lexus, or what account certain money was deposited in, are all statements made in a judicial proceeding and are thus privileged under the litigation privilege and unable to support a claim by Plaintiff against Defendant. Defendant has not met his burden of demonstrating the merit of his perjury claim by establishing a probability of success. The Court will GRANT Defendant's special motion to strike as to the perjury cause of action.

Attorney Fees

A "prevailing defendant on a special motion to strike shall be entitled to recover that defendant's attorney's fees and costs." (Code Civ. Proc. § 425.16(c).) The award of attorney fees is "mandatory." (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1131.) The Court finds that Defendant is the prevailing party on this anti-SLAPP motion, and thus she is entitled to attorney fees.

As noted by Defendant, she will file a separate noticed motion for fees and costs. The Court will address the propriety of the amount of fees at that time.

Ruling

Based on the above, Defendant's Special Motion to Strike is **GRANTED** as to Plaintiff's Perjury Cause of Action.

27. 9:00 AM CASE NUMBER: C25-02746

CASE NAME: CARTER HALLOCK VS. WENDY JARDINE

HEARING ON DEMURRER TO: COMPLAINT

FILED BY: WENDY JARDINE

TENTATIVE RULING:

Defendant Wendy Chapin Jardine ("Defendant") demurs to the cause of action for perjury from the complaint (the "Complaint") of Plaintiff Carter Chapin Hallock ("Plaintiff"). Because the Court has granted Defendant's simultaneously filed special motion to strike (anti-SLAPP) as to Plaintiff's cause of action for perjury, at Line 26, this instant demurrer is moot.